

## Subhash Chandra v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 February 2020 · WRIT - C No. - 3555 of 2020 · **Writ disposed; liberty to represent under clause 6.14; coercive recovery stayed six weeks.**

### HEADNOTE

Without expressing any opinion on the merits, the Allahabad High Court disposed of a writ seeking to quash an electricity recovery certificate and to obtain one-time settlement, instalments and a new connection, by granting liberty to file a representation under clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005. The concerned officer was directed to decide the representation by a speaking order in accordance with law, and coercive action on the recovery certificate was stayed for six weeks or until that decision, whichever was earlier.

### FACTUAL SUMMARY

Subhash Chandra challenged a 16 September 2019 recovery certificate for outstanding electricity dues, seeking a one-time settlement, a new connection after the first instalment, and revision of the billed amount with easy instalments after exemption of overdraft. He was willing to pay the entire demand but could not discharge it at one stroke given his financial condition. The licensee's counsel submitted that a consumer willing to deposit the entire amount could represent under clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.14

instalment facility for outstanding dues

#### HOLDING

Where a consumer facing a recovery certificate for electricity dues is willing to pay the demand but seeks instalments because of financial inability to pay at one stroke, the writ court may, without examining the merits, relegate him to a representation under clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005, to be decided by a speaking order in accordance with law, and stay coercive recovery for a short window pending that decision. ¶ 1

### PRINCIPLE TAGS

**installment-payment-clause-6.14** The Court treated clause 6.14 as the proper channel for a consumer who accepts the recovery demand but seeks to pay it in instalments, and disposed of the writ with liberty to represent under that clause rather than quashing the recovery certificate. ¶ 1

**instalment-facility-clause-6.14-for-financial-distress** The petitioner's plea that current financial condition prevented payment of the recovery certificate at one stroke was channelled to the clause 6.14 instalment facility; the Court itself did not fix instalments or grant one-time settlement relief. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — VALIDITY OF THE 16 SEPTEMBER 2019 RECOVERY CERTIFICATE, QUANTUM OF DUES, ONE-TIME SETTLEMENT OR OVERDRAFT EXEMPTION, AND A NEW CONNECTION AFTER FIRST INSTALMENT

The Court expressly declined to express any opinion on the merits of the grounds taken in the writ petition. ¶ 1